

Court No. - 29

Case :- WRIT - C No. - 3372 of 2021

Petitioner :- Shripal Singh

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Sushil Kumar

Counsel for Respondent :- C.S.C.

Hon'ble Pankaj Naqvi,J.

Hon'ble Piyush Agrawal,J.

Heard Shri Sushil Kumar for the petitioner, learned Standing Counsel for the State - respondent no. 1 and Shri Pranjal Mehrotra for respondent no. 2.

The petitioner was running a milk plant, which was closed on 05.12.2018. Earlier, for correction of electricity bill and installation of check meter, the petitioner approached this Court by filing Writ C No. 21963 of 2019, which was disposed of with a direction to the petitioner to approach the Executive Engineer concerned under clause 6.5 of the U.P. Electricity Supply Code and the Executive Engineer was directed to consider the same within a month.

It is submitted that pursuant to the order of this Court, check meter was installed, but no correction was made in the electricity bill. In this regard, the petitioner made an application dated 10.11.2020 before respondent no. 2 requesting to provide reassessed electricity bill. Petitioner again sent a reminder on 24.11.2020 reiterating his grievance, but respondent no. 2 issued disconnection-cum-demand notice showing an outstanding amount to the tune of Rs. 27,45,348.34 towards electricity dues. It is further submitted that the petitioner is ready to deposit the entire amount of electricity bill in case easy installments are fixed by this Court.

Be that as it may, no useful purpose would be served by keeping this writ petition pending in view of the order this Court proposes to pass hereunder.

This writ petition is disposed of with liberty to the petitioner to file objection/representation along with a copy of this order before the competent authority raising his grievance within a fortnight from today. In case such objection/representation is filed, the competent authority shall consider and decide the same by a reasoned and speaking order, as expeditiously as possible, preferably, within six weeks thereafter.

In the event the petitioner deposits 33% of the demanded

amount, restoration of the electricity supply of the petitioner shall be considered forthwith.

Order Date :- 3.2.2021
Amit Mishra